DATED 07/04/2020

(1) THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF CAMDEN

(2) FairHeat Limited

DATA SHARING AGREEMENT

THIS AGREEMENT is made the 7th day of April 2020

BETWEEN:

(1) (1) THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF CAMDEN [a Local Authority registered in England under information commissioner number Z5948361] whose registered office is at Town Hall, Judd Street, London WC1H 9JE ("Disclosing Party") and

(2) FairHeat Limited [a company registered in England under number 09408296 and under information commissioner number Z5123315] whose registered office is at 10 Stoney Street, London SE1 9AD ("Receiving Party").

WHEREAS:

(1) The Disclosing Party carries on the business of Local Authority and agrees to disclose to the Receiving Party certain personal data.

(2) The Receiving Party agrees to use the personal data disclosed to it by the Disclosing Party subject to the terms of this Agreement.

(3) This Agreement does not incorporate terms established by the Parties under other agreements.

(4) Both parties are registered with the information commissioner.

IT IS AGREED as follows:

1. **Definitions and Interpretation**

1.1 In this Agreement, unless the context otherwise requires, the following expressions have the following meanings:

"Data Protection Legislation"	means any data protection legislation from time to time in force in the United Kingdom including, but not limited to, the Data Protection Act 2018, any legislation which succeeds that Act, EU Regulation 2016/679 General Data Protection Regulation ("GDPR"), any other directly applicable European Union data protection or privacy regulations (for as long as, and to the extent that, the law of the European Union has legal effect in the United Kingdom), and, where applicable, guidance and codes of practice issued by any relevant data protection supervisory authority or authorities;
"controller" **"data controller"** **"data processor"** **"data subject"** **"personal data"** **"processing"** **"processor"** **"personal data breach"** **"special category personal data"** **"supervisory authority" and** **"appropriate technical and organisational measures"**	shall have the meanings ascribed thereto in the Data Protection Legislation;
"Representatives"	means, in relation to either Party, its officers and employees, professional advisers or consultants engaged to advise that Party, contractors or sub-contractors engaged by that Party;
"Shared Personal Data"	means the personal data **[**and special category personal data**]** to be shared between the Parties under this Agreement;
"Stated Purposes"	means the purposes set out in Schedule 1 for which the Shared Personal Data is to be shared;
"Term"	means the term of this Agreement, as set out in Clause 12.

1.2 Unless the context otherwise requires, each reference in this Agreement to:

1.2.1 “writing”, and any cognate expression, includes a reference to any communication effected by electronic or facsimile transmission or similar means;

1.2.2 a statute or a provision of a statute is a reference to that statute or provision as amended or re-enacted at the relevant time;

1.2.3 “this Agreement” is a reference to this Agreement and each of the Schedules as amended or supplemented at the relevant time;

1.2.4 a Schedule is a schedule to this Agreement; and

1.2.5 a Clause or paragraph is a reference to a Clause of this Agreement (other than the Schedules) or a paragraph of the relevant Schedule.

1.2.6 a "Party" or the "Parties" refer to the parties to this Agreement.

1.3 The headings used in this Agreement are for convenience only and shall have no effect upon the interpretation of this Agreement.

1.4 Words imparting the singular number shall include the plural and vice versa.

1.5 References to any gender shall include the other gender.

1.6 References to persons shall include corporations.

2. Stated Purposes

2.1 This Agreement establishes the framework for the sharing of the Shared Personal Data between the Parties as data controllers.

2.2 The Parties have determined that the sharing of the Shared Personal Data is necessary to create a heat loss models for the London Borough of Camden’s heating networks and carry out an investigation which allow for optimisation opportunities.

2.3 The Parties shall not process the Shared Personal Data for any purpose or in any way that is incompatible with the Stated Purposes set out in Schedule 1.

2.4 The Shared Personal Data shall be disclosed by the Disclosing Party to the Receiving Party only to the extent reasonably necessary for the Stated Purposes, as set out in Schedule 1.

2.5 It should be noted that both Parties are data controllers.

3. Data Protection Compliance

3.1 Each Party shall appoint a data protection officer Representatives as a point of contact for all issues relating to the sharing of the Shared Personal Data and the Data Protection Legislation (including, but not limited to, compliance, training, and the handling of personal data breaches). The contact details for the Parties’ appointed points of contact are as follows:

3.1.1 Andrew Maughan, ICT Helpdesk 0207 974 4321, (c) dpo@camden.gov.uk and

3.1.2 Gareth Jones, Managing Director, Gareth.jones@fairheat.com, [redacted]

3.2 Both Parties shall at all times during the Term of this Agreement comply with their obligations as data controllers, the rights of data subjects, and all other applicable requirements under the Data Protection Legislation. This Agreement is in addition to, and does not relieve, remove, or replace either Party's obligations under the Data Protection Legislation. Any material breach of the Data Protection Legislation by either Party shall, if not remedied within 2 weeks of written notice from the other Party, give the other Party grounds to terminate this Agreement with immediate effect.

4. The Shared Personal Data

4.1 The Shared Personal Data, including any applicable restrictions relating to it agreed by the Parties is described fully in Schedule 1.

4.2 No special category personal data is to be shared between the Parties.

4.3 The Disclosing Party shall ensure that the Shared Personal Data is accurate and up-todate prior to its disclosure to the Receiving Party.

4.4 The Parties shall use compatible technology for the processing of the Shared Personal Data in order to preserve accuracy.

5. Shared Personal Data - Fair and Lawful Processing

5.1 Both Parties shall at all times during the Term of this Agreement process the Shared Personal Data fairly and lawfully.

5.2 Both Parties shall ensure that they have legitimate grounds for processing the Shared Personal Data under the Data Protection Legislation.

5.3 The Disclosing Party shall ensure that it has in place all required notices and consents in order to enable the sharing of the Shared Personal Data under this Agreement. In particular, the Disclosing Party shall ensure that data subjects are provided with clear and sufficient information about the following:

5.3.1 the purposes for which their personal data is to be processed;

5.3.2 the legal basis upon which it is relying for such purposes;

5.3.3 the fact that their personal data is to be transferred to a third party and sufficient detail about the transfer to enable the data subject to understand the purpose of the transfer and any risks associated therewith; **[**and**]**

5.3.4 all other information required under Article 13 of the GDPR.

5.4 The Receiving Party shall ensure that it has in place all required notices and consents in order to enable the sharing of the Shared Personal Data under this Agreement. In particular, the Receiving Party shall ensure that data subjects are provided with clear and sufficient information about the following:

5.4.1 the purposes for which their personal data is to be processed;

5.4.2 the legal basis upon which it is relying for such purposes; **[**and**]**

5.4.3 **[**in the event that their personal data is to be transferred to a third party under Clause 8, the fact that such a transfer is to take place and sufficient detail about the transfer to enable the data subject to understand the purpose of the transfer and any risks associated therewith; **[**and**]]**

5.4.4 all other information required under Article 14 of the GDPR.

6. The Rights of Data Subjects

6.1 The Parties shall assist one another in complying with their respective obligations and the rights of data subjects under the Data Protection Legislation. Such assistance shall include, but not be limited to:

6.1.1 As data controllers each Party agrees to comply with the data protection legislation concerning data subject rights

6.2 Each Party shall maintain records of all data subject requests received, the decisions made in response, and any information provided to the data subject(s) concerned. Such records shall include copies of the request, details of any data accessed and shared, and, if applicable, details of any further correspondence, telephone conversations, or meetings relating to the request.

7. Data Retention and Deletion and/or Disposal

7.1 Subject to sub-Clause 7.2, the Receiving Party shall hold and process the Shared Personal Data only for so long as is necessary for the fulfilment of the Stated Purposes.

7.2 In the event that any statutory or similar retention periods apply to any of the Shared Personal Data, the relevant personal data shall be retained by the Receiving Party in accordance therewith.

7.3 The Receiving Party shall delete (or otherwise dispose of) the Shared Personal Data (or the relevant part thereof) and any and all copies thereof or, on the written request of the Disclosing Party, return it to the Disclosing Party, subject to any legal requirement to retain any applicable personal data, in the following circumstances:

7.3.1 upon the termination or expiry of this Agreement; or

7.3.2 once the Stated Purposes have been fulfilled and it is no longer necessary to retain the Shared Personal Data (or the relevant part thereof) in light of the Stated Purposes;

whichever is earlier.

7.4 All Shared Personal Data to be deleted or disposed of under this Agreement shall be deleted or disposed of using the following method(s): personal data will be deleted upon completion of the project or after 7 months, whichever is sooner. Any personal data will become fully anonymised and will be stored on an aggregated level after the project completion.

7.5 Following the deletion and/or disposal of the Shared Personal Data (as applicable), the Receiving Party shall notify the Disclosing Party of the same in writing, confirming that the Shared Personal Data has been deleted or disposed of using the method(s) set out above in sub-Clause 7.4.

8. **Shared Personal Data Transfers**

8.1 For the purposes of this Clause 8, the transfer of Shared Personal Data shall refer to any sharing of the Shared Personal Data by the Receiving Party with a third party. Such sharing shall include, but not be limited to, the appointment of a third-party

data processor and sharing the Shared Personal Data with a third-party data controller.

8.2 In the event that the Receiving Party wishes to appoint a third-party data processor, it shall remain liable to the Disclosing Party for any acts and/or omissions of the third-party processor and it shall comply with Articles 28 and 30 of the GDPR.

8.3 The Receiving Party shall not transfer any of the Shared Personal Data outside of the European Economic Area.

9. **Shared Personal Data Security**

9.1 The Disclosing Party shall transfer the Shared Personal Data to the Receiving Party using the following secure method(s): the data will be accessed by the receiving party via Guru Pinpoint, a cloud-based performance monitoring platform. The platform is encrypted and password protected and access will be granted only for the limited time of the project as described in section 7.4.

9.2 Both Parties shall ensure that they have in place appropriate technical and organisational measures (as set out in Schedule 2) **[**, as reviewed and approved by the other Party,**]** to protect against the unauthorised or unlawful processing of, and against the accidental loss or destruction of, or damage to, the Shared Personal Data, having regard to the state of technological development and the cost of implementing any such measures.

9.3 When putting appropriate technical and organisational measures in place, both Parties shall ensure a level of security appropriate to the nature of the Shared Personal Data which is to be protected, and to the potential harm resulting from the unauthorised or unlawful processing of, the accidental loss or destruction of, or damage to, the Shared Personal Data.

9.4 All technical and organisational measures put in place by both Parties shall be reviewed on six month basis by the respective Party, updating such measures upon the agreement of the other Party as appropriate throughout the Term of this Agreement.

10. **Training**

10.1 Both Parties shall ensure that any and all of their Representatives by whom the Shared Personal Data is to be handled and processed are appropriately trained to do so in accordance with the Data Protection Legislation and with the technical and organisational measures set out in Schedule 2.

10.2 The Receiving Party shall further ensure that any of its Representatives to whom the Shared Personal Data is to be disclosed are subject to contractual obligations in relation to confidentiality and data protection that bind those Representatives and that are same as the obligations imposed upon the Receiving Party by this Agreement.

11. **Personal Data Breaches**

11.1 In the event of a personal data breach, each Party shall comply with its obligations to report such a breach to the supervisory authority and, if applicable, to the affected data subjects in accordance with Article 33 of the GDPR. Furthermore, each Party

shall inform the other Party of any such breach without undue delay, irrespective of whether it is required to be reported to the supervisory authority or to data subjects.

11.2 Each Party shall provide reasonable assistance to the other Party at its own cost

12. **Term, Review, and Termination**

12.1 This Agreement shall come into force on 7th of April 2020. The Parties shall review the sharing of the Shared Personal Data under this Agreement on a six month basis, in light of the reasons, aims, and benefits described in sub-Clause 2.2 and, based upon the outcome of such a review, the Parties shall continue, amend, or terminate this Agreement.

12.2 Reviews under this Clause 12 shall address the following:

12.2.1 evaluating the purposes for which the Shared Personal Data is being processed in order to determine whether those purposes are still limited to the Stated Purposes;

12.2.2 evaluating whether the Parties are complying with the Data Protection Legislation and with the provisions of this Agreement governing fair and lawful processing (Clause 5), the rights of data subjects (Clause 6), data retention (Clause 7), and data security (Clause 9); and

12.2.3 evaluating whether any personal data breaches affecting the Shared Personal Data have been handled in accordance with this Agreement and the Data Protection Legislation.

12.3 Each Party shall have the right to inspect the other Party's arrangements for holding and processing the Shared Personal Data and to terminate this Agreement if it considers that the other Party is not processing that Shared Personal Data in accordance with the Data Protection Legislation or this Agreement.

13. **Resolution of Disputes with Data Subjects or the Supervisory Authority**

13.1 In the event of a dispute or claim brought by a data subject or the supervisory authority concerning the processing of Shared Personal Data against either or both Parties, the Parties will inform each other about any such disputes or claims, and will cooperate with a view to settling them amicably in a timely fashion.

13.2 The Parties agree to respond to any generally available non-binding mediation procedure initiated by a data subject or by the supervisory authority. If they do participate in the proceedings, the Parties may elect to do so remotely (such as by telephone or other electronic means). The Parties also agree to consider participating in any other arbitration, mediation, or other dispute resolution proceedings developed for data protection disputes.

13.3 Each Party shall abide by a decision of a competent court of the Disclosing Party's country of establishment or of the supervisory authority.

14. Warranties

14.1 Each Party hereby warrants and undertakes that it shall:

14.1.1 hold and process the Shared Personal Data in compliance with the Data Protection Legislation and all other applicable laws, enactments, regulations, orders, standards, and similar applicable instruments;

14.1.2 respond without undue delay and as far as reasonably possible to any enquiries from the supervisory authority relating to the Shared Personal Data;

14.1.3 respond to data subject access requests in accordance with the Data Protection Legislation;

14.1.4 if applicable, pay the appropriate fees to the supervisory authority; and

14.1.5 take all appropriate steps to ensure compliance with the security measures set out in Clause 9 of this Agreement.

14.2 The Disclosing Party hereby warrants and undertakes that it is authorised to share the Shared Personal Data with the Receiving Party and that the Shared Personal Data will be accurate and up-to-date.

14.3 The Receiving Party hereby warrants and undertakes that it shall not transfer any of the Shared Personal Data outside of the UK and the European Economic Area

14.4 Except as expressly stated in this Agreement, all other warranties, conditions, and terms, whether express or implied by statute, common law, or otherwise, are hereby excluded to the fullest extent permissible by law.

15. No Partnership or Agency

15.1 Nothing in this Agreement shall establish any partnership or joint venture between the Parties, constitute either Party the agent of the other Party, or authorise either Party to make or enter into any commitments for or on behalf of the other Party.

15.2 Each Party hereby confirms that it is acting on its own behalf and not for the benefit of any other person.

16. Non-Assignment of Agreement

Neither Party may assign, transfer, sub-contract, or in any other manner make available to any third party the benefit and/or burden of this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld.

17. **Entire Agreement**

This Agreement contains the entire agreement between the Parties with respect to its subject matter and may not be modified except by an instrument in writing signed by the duly authorised representatives of the Parties.

18. **Variation**

No variation of or addition to this Agreement shall be effective unless in writing signed by each of the Parties or by a duly authorised person on its behalf.

19. **No Waiver**

No failure or delay by either Party in exercising any of its rights under this Agreement shall be deemed to be a waiver of that right, and no waiver by either Party of a breach of any provision of this Agreement shall be deemed to be a waiver of any subsequent breach of the same or any other provision.

20. **Severance**

The Parties agree that, in the event that one or more of the provisions of this Agreement is found to be unlawful, invalid, or otherwise unenforceable, that or those provisions shall be deemed severed from the remainder of this Agreement. The remainder of this Agreement shall be valid and enforceable.

21. **Communication**

21.1 All notices under this Agreement shall be in writing and be deemed duly given if signed by the Party giving the notice or by a duly authorised officer thereof, as appropriate.

21.2 Notices shall be deemed to have been duly given:

21.2.1 when delivered, if delivered by courier or other messenger (including registered mail) during the normal business hours of the recipient; or

21.2.2 when sent, if transmitted by facsimile or email and a successful transmission report or return receipt is generated; or

21.2.3 on the fifth business day following mailing, if mailed by national ordinary mail, postage prepaid; or

21.2.4 on the tenth business day following mailing, if mailed by airmail, postage prepaid.

21.3 All notices under this Agreement shall be addressed to the most recent address, facsimile number, or email address notified to the other Party.

22. **Third Party Rights**

Unless expressly stated otherwise, this Agreement does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.

23. **[Consideration**

The Receiving Party accepts the obligations in this Agreement in consideration of the payment of £1 from the Disclosing Party, which the Receiving Party hereby acknowledges.**]**

24. **Law and Jurisdiction**

24.1 This Agreement (including any non-contractual matters and obligations arising therefrom or associated therewith) shall be governed by, and construed in accordance with, the laws of England and Wales.

24.2 Any dispute, controversy, proceedings or claim between the Parties relating to this Agreement (including any non-contractual matters and obligations arising therefrom or associated therewith) shall fall within the jurisdiction of the courts of England and Wales.

SIGNED for and on behalf of the Disclosing Party by:

Simronjit Dhinsa, Senior Energy Performance Officer

_____ Authorised Signature

Date: _____

SIGNED for and on behalf of the Receiving Party by:

Gareth Jones, Managing Director

_____
Authorised Signature

Date: _____

SCHEDULE 1

Shared Personal Data and Stated Purposes

Category of Personal Data	Category of Data Subject	Stated Purposes	Restrictions (If Applicable)
Access of heat consumption data	Gareth Jones (Director) Tom Naughton (Associate) James Gallimore (Senior Engineer) ***Lead Engineers*** [redacted] ***Consulting Engineers*** [redacted] ***Graduate Engineers*** [redacted]	Analyse multiple heat meter data points, to see where there excess heat losses, thus make recommendations for improvements.	Only people who will do the analysis will have temporary access to the heat meter data. Address details which show where the heat meter is allocated to will be removed if the data is shared with BEIS – (BEIS is the government department funding this project)

	All Graduate and Lead engineers will analyse the dwelling level heat meter data. Associate and Director level to provide oversight.		

SCHEDULE 2

Technical and Organisational Data Protection Measures

The following are the technical and organisational data protection measures referred to in Clause 9:

1. Each Party shall ensure that, in respect of all Shared Personal Data, it maintains security measures to a standard appropriate to:

   1.1 the nature of the Shared Personal Data which is to be protected; and

   1.2 the potential harm resulting from the unauthorised or unlawful processing of, the accidental loss or destruction of, or damage to, the Shared Personal Data.

2. In particular, each Party shall:

   2.1 have in place, and comply with, a security policy which:

      2.1.1 defines security needs based on a risk assessment;

      2.1.2 allocates responsibility for implementing the policy to a specific individual **[**(such as a data protection officer)**]** or personnel;

      2.1.3 is provided to the other Party on or before the commencement of this Agreement;

      2.1.4 is disseminated to all relevant Representatives (and other staff, if applicable); and

      2.1.5 provides a mechanism for feedback and review.

   2.2 ensure that appropriate security safeguards and virus protection are in place to protect the hardware and software which is used in processing the Shared Personal Data in accordance with best industry practice;

   2.3 prevent unauthorised access to the Shared Personal Data;

2.4 protect the Shared Personal Data using pseudonymisation, where it is practical to do so;

2.5 ensure that its storage of Shared Personal Data conforms with best industry practice such that the media on which Shared Personal Data is recorded (including paper records and records stored electronically) are stored in secure locations and access by personnel to Shared Personal Data is strictly monitored and controlled;

2.6 have secure methods in place for the transfer of Shared Personal Data whether in physical form (for example, by using couriers rather than post) or electronic form (for example, by using encryption);

2.7 password protect all computers and other devices on which Shared Personal Data is stored, ensuring that all passwords are secure (Passwords must be a minimum of 8 characters and be a mixture of uppercase and lowercase, with a mix of numeric and alphabetic characters) and that passwords are not shared under any circumstances;

2.8 **[**not allow the storage of the Shared Personal Data on any mobile devices such as laptops or tablets unless such devices are kept on its premises at all times;**]**

2.9 take reasonable steps to ensure the reliability of personnel who have access to the

Shared Personal Data;

2.10 have in place methods for detecting and dealing with breaches of security (including loss, damage, or destruction of Shared Personal Data) including:

2.10.1 the ability to identify which individuals have worked with specific Shared Personal Data;

2.10.2 having a proper procedure in place for investigating and remedying breaches of the Data Protection Legislation; and

2.10.3 notifying the other Party as soon as any such security breach occurs.

2.11 have a secure procedure for backing up all electronic Shared Personal Data and storing back-ups separately from originals;

2.12 have a secure method of disposal of unwanted Shared Personal Data including for back-ups, disks, print-outs, and redundant equipment; and

2.13 adopt such organisational, operational, and technological processes and procedures as are required to comply with the requirements of ISO/IEC 27001:2013, as appropriate to the Stated Purposes and the nature of the Shared Personal Data.